# THE JUDGES (PROTECTION) ACT, 1985

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SECTIONS

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IndiaCode

# THE JUDGES (PROTECTION) ACT, 1985

## ACT NO. 59 OF 1985

[6*th September*, 1985.]

An Act for securing additional protection for Judges and others acting Judicially and for matters connected therewith.

BE it enacted by Parliament in the Thirty-sixth Year of the Republic of India as follows:—

**1. Short title and extent.**—(*1*) This Act may be called the Judges (Protection) Act, 1985.

(*2*) It extends to the whole of India [1]***.

**2. Definition**.—In this Act, "Judge" means not only every person who is officially designated as a Judge, but also every person—

(*a*) who is empowered by law to give in any legal proceeding a definitive judgment, or a judgment which, if not appealed against, would be definitive, or a judgment which, if confirmed by some other authority, would be definitive; or

(*b*) who is one of a body of persons which body of persons is empowered by law to give such a judgment as is referred to in clause (*a*).

**3. Additional protection to Judges.**—(*1*) Notwithstanding anything contained in any other law for the time being in force and subject to the provisions of sub-section (*2*), no court shall entertain or continue any civil or criminal proceeding against any person who is or was a Judge for any act, thing or word committed, done or spoken by him when, or in the course of, acting or purporting to act in the discharge of his official or judicial duty or function.

(*2*) Nothing in sub-section (*1*) shall debar or affect in any manner the power of the Central Government or the State Government or the Supreme Court of India or any High Court or any other authority under any law for the time being in force to take such action (whether by way of civil, criminal, or departmental proceedings or otherwise) against any person who is or was a Judge.

**4. Saving**.—The provisions of this Act shall be in addition to, and not in derogation of, the provisions of any other law for the time being in force providing for protection of Judges.

1. The words "except the State of Jammu and Kashmir" omitted by Act 34 of 2019, s. 95 and the Fifth Schedule (w.e.f. 31-10-2019).